

the motion and Defendant shall verify whether she opposes the same. Absent opposition, the Court is inclined to grant the motion.

6. CU0002360 Melanie Highsmith, et al. vs. Samuel Miller, et al.

Plaintiff Melanie Lee Highsmith's unopposed motion for leave to request trial by jury and deposit jury fees pursuant to Code of Civil Procedure section 631(d) is granted.

The California Constitution provides that all civil litigants have the right to trial by jury, but they may waive that right in a manner prescribed by statute. (Cal. Const., art. I, § 16.) The statute implementing this provision, Code of Civil Procedure section 631 (section 631), sets forth various acts and omissions that constitute jury waiver, including failing to make a timely jury demand and failing to timely deposit a jury fee in accordance with statutory requirements. (§ 631, subd. (f).) Waiver does not categorically foreclose trial by jury; a litigant that has waived jury trial may seek relief from the waiver. The trial court has discretion whether to grant relief, on such terms as may be just. (§ 631, subd. (g) ...) *TriCoast Builders, Inc. v. Fonnegra* (2024) 15 Cal.5th 766, 773.

In deciding whether it should exercise its discretion to grant relief to a plaintiff who has waived his right to a jury trial, "a court properly considers a host of essentially equitable factors" *TriCoast*, 15 Cal.5th at 784, including, for example, "whether relief would cause hardship to other parties ... ; the timeliness of the request; the party's willingness to comply with applicable jury fee obligations; and the party's reasons for seeking the relief." *Id.* at 783.

At bar, Plaintiff inadvertently failed to post jury fees by the deadline. Zimmerman Decl., ¶ 2. Plaintiff has now posted jury fees. Zimmerman Decl., Ex. 1. Defendants have also requested a jury trial and posted jury fees. Zimmerman Decl., ¶ 4. There is no opposition and no showing of prejudice or hardship to any party. Good cause having been established, the motion is granted.

7. CU0002491 Malin Kumar Ram vs. Rodney Andrews, et al.

Defendant Charles Hasbun's January 23, 2026, demurrer is sustained as to counts four, six, eight, and nine. Plaintiff is granted leave to amend within ten (10) days of this Court's order.

Legal Standard

On demurrer, a court's function is limited to testing the legal sufficiency of the complaint. *Fremont Indemnity Co. v. Fremont General Corp.* (2007) 148 Cal.App.4th 97, 113-114. In determining a demurrer, the court assumes the truth of the facts alleged in the complaint and the reasonable inferences that may be drawn from those facts. *Miklosy v. Regents of the Univ. of Cal.* (2008) 44 Cal.4th 876, 883. A court must determine if the factual allegations of the complaint are adequate to state a cause of action under any legal theory. *Barquis v. Merchants Collection Assn.* (1972) 7 Cal.3d 94, 103.

Contentions, deductions and conclusions of law, however, are not presumed as true. *Aubry v. Tri-City Hospital Dist.* (1992) 2 Cal.4th 962, 967. A plaintiff is not required to plead evidentiary